

CHAPTER XV.

Injunctions.

Common Injunctions to stay legal proceedings.

The frequent object of bills in Equity is to stay proceedings at law against the plaintiff in Equity, where the rule of law prevents a defence in that Court, but relief may be obtainable in Equity. The "Common Injunction" stays execution at law, but, generally, does not stay the proceedings down to judgment. As to the difference between common and special injunctions, see *Daniel's Chancery Practice*, vol. 3.

The following are the new rules on the subject of common injunctions :—

1850.
LXXI.
Injunction as of course for want of appearance ;

or answer.

LXXII.
Amendment.

Effect of.

The plaintiff in a bill praying an injunction to stay proceedings at law is entitled, as of course, on motion or petition, and without an attachment, to the common injunction for want of appearance, if a defendant has not appeared in person, or by his own solicitor, on or after the expiration of *fourteen* days from the service of the subpoena ; and for want of answer, if a defendant is in default for want of answer, on or after the expiration of *fourteen* days from the day on which an appearance was entered by or for him.

The plaintiff in an injunction cause, having obtained the common injunction to stay proceedings at law, may (either before or after the answer of a defendant is put in, and whether such injunction be or be not continued to the hearing of the cause) obtain one order as of course to amend his bill without prejudice to the injunction ; and, if such bill be amended pursuant to such order, such defendant may thereupon (and although he may not have put in his answer to such bill or the amendments thereof) move the Court on notice to dissolve the injunction, on the

ground that the amendment is unnecessary.

On all such applications as well as on applications for affidavits in support of an answer.

In cases where the plaintiff has prayed by bill for relief having been refused on the merits stay of execution towards amendment or demurrer in the place of the bill, the plaintiff is entitled to move for the amendment of the bill.

The above rules apply to the 59th section of the Act, in respect of the exception, the plaintiff is instead of the bill.

The above rules apply to the 16th section of the Act.

If with the demurs, or otherwise, not entitled to an Order. S.

The 73rd section of the Act, in respect of the necessity of answers to bills as formerly.